



Appeal Decision

Inquiry held on 14 - 23 April 2026

Site visit made on 17 April 2026

by Stephen Normington BSc, DipTP, MRICS, MRTPI, FIHE, FIQ

an Inspector appointed by the Secretary of State

Decision date: 26 August 2026

Appeal Ref: 6002168

Mytax Farm, 4 Bourbles Lane, Poulton-Le-Fylde, FY6 0PE

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by the Baxter Group Ltd against the decision of Lancashire County Council.
 - The application Ref is LCC/2023/0030.
 - The development proposed is the extraction and processing of sand and gravel including the construction of new site access roads, landscaping and screening bunds, minerals washing plant and other associated infrastructure with restoration to mixed grassland, arable/pasture farmland and biodiversity enhancement, using imported inert fill.
-

Decision

1. The appeal is dismissed.

Preliminary Matters

2. The Preesall and Knott End against Quarry Application were granted Rule 6(6) Party status pursuant to the Town and Country Planning (Inquiries Procedure) (England) Rules 2000. The Rule 6 Party participated fully in the Inquiry.
3. During the Inquiry the Council and the Appellant agreed an amended description of the proposed development. I have used the amended description in the banner heading above.
4. The Inquiry was formally closed in writing on 26 May 2026 following receipt of information that I requested on the final day of the sitting sessions, as set out in Annex C of this decision. This included the submission of a completed planning obligation in the form of a Unilateral Undertaking¹ (UU) pursuant to section 106 of the Town and Country Planning Act 1990 which was signed on 12 May 2026. This makes provision for the submission of a Traffic Management Scheme to the Council. I shall return to the content of the UU later in this decision.
5. A Statement of Common Ground (Main SoCG) was provided and signed by the Council and the Appellant on 2 February 2026. This identified that there is no dispute between the Council and the Appellant regarding the current landbank position and supply issues in relation to land won sand and gravel and inert waste backfilling. Matters relating to landscape, agricultural land, archaeology, water environment/flooding and ecology were also not identified as being in dispute. However, matters relating to unacceptable impacts on highway safety, noise, dust

¹ ID48

and air quality were identified in the Main SoCG as matters in dispute which the Council intended to defend in the appeal.

6. A SoCG signed by the Appellant and the Council in its capacity as highway authority (Highways SoCG) was also provided dated 5 March 2026. This identified that matters of dispute relate to the suitability of the proposed access, vehicular conflict, the route suitability of the local highway network, and the adequacy of the proposed highway mitigation strategy.
7. A SoCG in relation to noise impacts (Noise SoCG), signed on 6 March 2026, and a SoCG relating to dust impacts (Dust SoCG), also signed on the same date, were also provided.
8. The application was accompanied by an Environmental Statement (ES) prepared pursuant to the requirements of the Town and Country Planning (Environmental Impact Assessment) Regulations 2017 (as amended). The Council considered that further information was required pursuant to Regulation 25 of the EIA² Regulations (Regulation 25). The requested information was submitted in December 2024³.
9. Having undertaken its own review on behalf of the Secretary of State, the Planning Inspectorate considered that further information was also required pursuant to Regulation 25. The requested further information was provided on 6 March 2026. Having undertaken further review, the Planning Inspectorate considers the submitted ES, as amended and supplemented by the two Regulation 25 submissions, to be satisfactory in terms of Schedule 4 of the EIA Regulations. Having considered the overall ES, I am satisfied that it is fit for purpose and identifies the likely environmental effects arising from the application scheme and is satisfactory in terms of Schedule 4 of the EIA Regulations.
10. During the appeal the Appellant provided a Shadow Habitats Regulations Assessment (sHRA) dated 10 April 2026. This was subject to consultation with Natural England. I shall return to the sHRA later in this decision.
11. Several amendments were made to the appeal scheme prior to the opening of the Inquiry. These included increases in the height of some soil bunds ranging from 0.1m to 1.5m; an increase in the length of a soil bund by 30m in the vicinity of the "Woodlands" garden; changes in the implementation period for the installation of some bunding; provision of acoustic fencing to be placed in three locations; and, potential changes to visibility splays at the junction of the site access road with the B5270 Lancaster Road.
12. I have considered the extent to which the above changes would be substantive or result in procedural unfairness should I be minded to accept them. It was clear that all parties were aware of these proposed amendments prior to the opening of the Inquiry. They were considered in the evidence of relevant witnesses and were fully discussed in the Inquiry. In my view, the proposed changes do not constitute a fundamental change to the scheme considered by the Council at application stage and in most cases are aimed at mitigating some of the impacts of the proposed mineral extraction operations. Furthermore, given the extent to which they were considered in evidence and discussed in the Inquiry, I do not consider

² CD3.01

³ CD3.02 – CD3.11

that the determination of this appeal based on those amendments would constitute procedural unfairness. As such, I have determined the appeal on the basis of the proposed amendments which are shown on a revised suite of relevant plans.

13. Prior to my determination of this appeal the Government published a revised National Planning Policy Framework (the Framework) on 17 August 2026 which replaced the previous version. I have taken into account the relevant provisions of the revised version in the determination of the appeal and any references to the Framework in this decision relate to the revised document. In having regard to the matters that are most relevant to this appeal, there are no material changes to the Framework of relevance to the substance of this appeal. Therefore, I am satisfied that no party to this appeal would be prejudiced by the changes to the national policy context.

Main Issues

14. Having considered the evidence before me and from what I heard at the Inquiry, the main issues in this appeal are:
 - The need for the proposed development with particular regard to the landbank position for sand and gravel and the need for inert waste disposal in the County.
 - The effect of the proposed development on highway safety and the free flow of traffic.
 - The effect of the proposed development on the living conditions of the occupants of nearby residential dwellings with particular regard to dust, air quality and noise.

Reasons

The appeal site and proposed development

15. The appeal site is located approximately 1km east of Preesall and comprises approximately 20.7 hectares (ha) of generally flat lying agricultural land with some small lakes and a “duck breeding pen”. The proposed mineral extraction area would be approximately 11.9 ha. Arable fields, an isolated farm and residential properties bound the site together with a small number of relatively small-scale commercial businesses including kennels, equestrian uses and a small caravan and camping site.
16. The site lies approximately 1.5km from the Morecambe Bay and Duddon Estuary Special Protected Area (SPA), the Morecambe Bay Special Area of Conservation (SAC) and the Morecambe Bay Ramsar. It also lies approximately 1.4km from the Lune Estuary Site of Special Scientific Interest (SSSI) and approximately 2.3km from the Wyre Estuary SSSI.
17. No part of the site is subject to any statutory landscape or ecological designations. However, Phases 2 and 3 are part of a wider Biological Heritage Site known as Pilling Moss/Head Dyke. This covers a large area of farmland being designated for its value for overwintering birds associated with the nearby European sites, with surrounding farmland identified in the sHRA as functioning as supporting habitat for SPA qualifying species.

18. The proposed development would comprise the extraction and processing of approximately 500,000 tonnes of sand and gravel from four separate phases at an annual output rate of approximately 100,000 tonnes. The site would be progressively restored using in situ soils and overburden, together with approximately 220,000m³ of imported inert restoration materials. Following the completion of mineral extraction operations (approximately five years), a further two years would be required to complete restoration works thereby giving an overall duration of approximately seven years.
19. The phases include:
- Phase A – Site Enabling Works (approximately 6 months)
 - Phase 1 – North-western area of site (approximately 18 months).
 - Phase 2 – North of Bourbles Lane (approximately 6 months)
 - Phase 3 – East of Bourbles Lane (approximately 18 months)
 - Phase 4 – Central area including duck pen (approximately 12 months)
 - Phase 5 – Completion of infilling, processing plant removal and final restoration (approximately 12 months).
20. The site would be accessed via a new junction onto the B5270 Lancaster Road approximately 200 metres west of its junction with the A588 Blackpool to Lancaster Road. The proposal would be expected to generate an average of 74 two-way heavy goods vehicle (HGV) movements per day (37 in and 37 out) with a maximum of around 120 two-way HGV trips associated with the export of minerals and importation of restoration materials.

The Development Plan

21. The Main SoCG confirms that the relevant Development Plan for the appeal comprises the following:
- The Joint Lancashire Minerals and Waste Development Framework Core Strategy Development Plan Document, adopted 2009 (Core Strategy)⁴;
 - The Joint Lancashire Minerals and Waste Local Plan - Site Allocations and Development Management Policies – Part I, adopted 2013 (Local Plan Part 1)⁵;
 - The Joint Lancashire Minerals and Waste Local Plan - Site Allocations and Development Management Policies – Part 2, adopted 2013 (Local Plan Part 2)⁶; and
 - The Wyre Local Plan 2011-2031, adopted 2019 (Wyre Local Plan)⁷.
22. Local Plan Part 1 sets out the policies by which applications for minerals and waste development will be considered. Local Plan Part 2 shows maps and detailed background information relating to the site-specific policies. The appeal site is not allocated for the extraction of sand and gravel in the Development Plan.

⁴ CD7.01

⁵ CD7.02

⁶ CD7.03

⁷ CD7.04

23. The Core Strategy and Local Plan Parts 1 and 2 had plan periods running to the end of 2020. There is disagreement between the main parties regarding the weight to be attached to the policies contained within the aforementioned plans. However, the Council accepts little weight can be attached to the restrictions on new permissions for minerals development set out in Core Strategy Policy CS3 (Meeting the demand for new Minerals), Core Strategy Policy CS4 (Identifying Sites and Areas for Mineral Extraction) and Local Plan Part 1 Policy M1 (Managing Mineral Production).
24. I have considered the weight to be attached to the relevant policies of the Development Plan, and the extent to which any can be considered as being consistent with the National Decision-Making Policies set out in the Framework, in the consideration of the main issues below.

Need for sand and gravel and inert fill provision

Need for sand and gravel

25. The introductory text to Chapter 11 of the Framework states that a sufficient supply of minerals is essential to provide the infrastructure, buildings, green energy and goods that the country needs. Policy M2(a) sets out that the Development Plan should allocate sites and/or identify preferred areas to maintain landbanks of at least seven years for sand and gravel.
26. The Development Plan does not provide policy support for new sites for the extraction of sand and gravel aggregates. Policy CS3 sets out a provision for a quantum of aggregate minerals and, together with Policy CS4, provides policy support for the release of 4.1 million tonnes (mt) of sand and gravel by 2021. Policy M1 also does not provide any support for new releases of aggregates, including sand and gravel, due to planning permission having been granted at that time for sand and gravel extraction at Runshaw Quarry which were identified as being sufficient to meet the need identified in Policy CS3.
27. Both main parties recognise that due to the age of the Development Plan more recent information with regard to sand and gravel reserves, landbank provision and future need are required to be considered. In this regard, both main parties have referred to the Council's Local Aggregate Assessment (LAA) 2023⁸, which uses 2022 data, and the North West Aggregate Working Party Annual Monitoring Report 2025⁹ (AMR) (using 2024 data).
28. The LAA sets out that at the end of 2022, Lancashire held approximately 4.46mt of permitted land-won sand and gravel reserves. The LAA notes that the minimum seven year landbank could begin to erode from 2026 in the absence of timely additional provision being granted planning permission. The Officer Report to the Council's Development Control Committee (Officer Report) recognised that the current position is that the landbank of sand and gravel reserves in Lancashire is around 4.3 million tonnes which is at or slightly above the minimum landbank requirement of seven years.
29. The North West Regional Aggregate Working Party has identified that the sub-regional apportionment for sand and gravel supply in Lancashire is 440,000 tonnes per year. The supply position was considered in the 2023 LAA which notes that

⁸ CD7.05

⁹ CD7.07

sales had reduced considerably due to the closure/exhaustion of reserves at a number of existing sand and gravel quarries and that the remaining operational sites are not capable of producing at the level required to meet the sub-regional apportionment.

30. The remaining reserves are held in a very small number of quarries with the only active sites being Bradleys Sandpit (Preston) and Lydiate Lane (Leyland). By far the largest proportion of permitted reserves (4.1mt) is held in one site at Runshaw Quarry which is currently non-operational. Planning permission for Runshaw Quarry will expire in July 2026. I have no evidence to indicate whether a new planning application to extend the time period of the permission is to be submitted. Regardless of the status of Runshaw Quarry, I agree with the Appellant that the fact that the vast majority of the Council's landbank is bound in a single site is itself contrary to the principle of Policy M1(2)(d) of the Framework. Even if the Runshaw site was to commence production, it is subject to an output restriction which limits heavy goods vehicles leaving the site to 60 per day thereby limiting the ability of this site to meet the forecast demand.
31. If Runshaw Quarry is removed from the landbank, there would be only 0.20mt of permitted reserves. Based on the 10 year average sales rate identified in the LAA of 0.37mt, this leaves the Council with a 0.5 year landbank. The 10 year average sales figure included within the latest AMR of 0.29mt leaves the Council with a 0.69 year landbank. If the North West Regional Aggregate Working Party sub regional apportionment for sand and gravel supply in Lancashire of 0.44mt per year is used, this leaves the Council with only a 0.45 year landbank. Therefore, the ability for the County to ensure a steady and adequate supply of sand and gravel aggregates as required by national policy is severely constrained. The Main SoCG confirms that Lancashire faces a critical landbank and supply shortage, aggravated by the closure of a number of quarries and the over reliance on a single inactive site.
32. The Council is considering a planning application for sand and gravel extraction at Lower Hall Farm near Preston (LCC/2021/0012) with reserves of 3mt which is proposed to be worked at 150,000tpa over 20 years. However, this application has remained undetermined for over five years and appears to have a number of unresolved issues. I have no evidence to indicate when, or if, this application is likely to be determined, and the Council did not seek to rely on this proposal in the evidence regarding the landbank position in the County.
33. Although not previously considered in the Officer Report or Main SoCG, the Council also identified that other alternative sources of sand and gravel in the County including crushed rock fines, marine dredged aggregates and recycled aggregates could contribute to supply. Whilst I accept that such alternatives can make a useful contribution to aggregate supply, they do not materially alter the fact that a landbank of at least seven years for sand and gravel cannot be demonstrated in the County.
34. The LAA demonstrates that Lancashire is a net importer of sand and gravel. It predicts, based on housing forecasts, a higher than previous housing requirement annually, and in turn a higher annual requirement for sand and gravel reserve.
35. The updated standard methodology for calculating housing delivery will also likely result in an increase requirement for sand and gravel. The LAA suggests that the

forecast housing need results in a higher annual apportionment being required to be demonstrated (570,000tpa) than the current sub-regional annual apportionment of 440,000tpa.

36. The appeal site is located to the east/north east of the settlements of Fleetwood (approximately 3km), Thornton (approximately 5km), Cleveleys (approximately 6km) and Poulton-Le-Fylde (approximately 8km) all of which are at the top of the Wyre Local Plan settlement hierarchy, classed as 'Urban Town' within Policy SP1. These locations (along with Normoss – a suburb of Blackpool), are to facilitate a planned 48.6% of all residential housing delivery during the plan period to 2031 totalling 4,285 dwellings.
37. The appeal site is located within very close proximity to these areas of planned growth within Wyre. In addition, it is located approximately 10km northeast and approximately 18.8km northwest of the northern suburbs of Blackpool and Preston respectively. Both of these authority areas are also subject to significantly increase annual housing delivery requirements from the Standard Methodology.
38. Taking the above factors into account, little weight can be attached to the restrictions on new permissions for sand and gravel extraction as set out on policies CS3, CS4 and M1 of the Core Strategy. I am satisfied that there is a critical shortfall in sand and gravel supply in Lancashire, with the County being a net importer of sand and gravel mineral which, in my view, is not a sustainable strategy. The appeal proposals would make an important contribution to the provision of sand and gravel in Lancashire.

Inert waste material

39. I have no evidence to suggest that there is any disagreement between the main parties regarding the need for the deposit of inert waste material at the site. The Officer Report identifies that *"There is a need to import material to allow the effective restoration of the site, and to permit the restoration of high quality agricultural land. The waste importation aspects of the development are considered to be acceptable in terms of the broad policies for waste management"*¹⁰. In addition, I have no evidence of any Development Plan policy that would materially preclude sites for inert waste disposal from being brought forward.
40. Notwithstanding the age of parts of the Development Plan, the Core Strategy and Local Plan Part 1 are the relevant development plan documents for waste management considerations. Core Strategy Policy CS8 focuses on the process of identifying capacity for the management of waste across the plan period. In relation to inert waste, the policy states that: *"The capacity and distribution of existing and planned provision for the use and disposal of inert waste in landfill and quarry voids will be assessed as part of the site selection process, to ensure an adequate, available and accessible capacity of sites to handle inert waste."*
41. Policy WM1 of the Local Plan Part 1 is the development plan policy with regard to construction, demolition and excavation waste arising to be dealt with in the Joint Local Plan area. This identifies that within the most recent six years of the plan period (2016 – 2020), an anticipated 1,093,500 tonnes of residual waste would need to be managed through recovery / landfill operations, including the use of

¹⁰ CD6.02 – paragraph 70

such waste in the restoration of quarry voids, equating to an average of 218,700 tonnes per annum.

42. It is clear that in order to achieve the restored landform, the importation of restoration materials would be required as there would be insufficient non-marketable quarry material to achieve a suitable final landform. I have no evidence to suggest that the amount of material proposed to be imported into the site would be excessive. In addition, I have no evidence to suggest that the volumes proposed for importation would not be available.
43. As identified above, there are a number of proposed and permitted large-scale development schemes situated in relatively close proximity to the appeal site, including both infrastructure and housing delivery. It is likely that large quantities of inert waste would arise from schemes which would likely need to be managed as close to the source of production as possible.
44. The Appellant indicates that there are three existing waste management facilities for inert waste within Lancashire¹¹ clustered to the southern extent of the County and located to the south of Preston, Chorley and Blackburn. The appeal site is located within relatively close proximity to Fleetwood, Thornton, Cleveleys and Poulton-Le-Fylde all of which are settlements positioned at top of the settlement hierarchy for Wyre Council. In addition, the appeal site would provide for the closest inert waste facility for the major settlement of Blackpool, and the northern Lancashire towns of Lancaster, Morecombe and Carnforth.
45. Although not raised as a matter of dispute on the Main SoCG, the evidence provided by the Council suggests that there is additional inert waste management capacity in the Borough's of Lancaster, Fylde, Wyre and Preston in addition to that identified by the Appellant. Although the Council has not explicitly set out the implications of these additional sites on the appeal proposals, nor has it identified the precise location of these sites to new planned and permitted development, the overall inference of this evidence would suggest that new inert waste management capacity is not significantly required.
46. However, the Appellant considers that the additional sites identified by the Council are some distance (by road) from the appeal site ranging from 17km to 31km. As such, there would likely be a relatively considerable haulage distance to access these facilities. In the absence of any detailed assessment by the Council regarding the implications of these additional sites in respect of local waste management capacity and need, I have attached little weight to this evidence and I have no compelling reasons to depart from the agreed position set out in the Main SoCG.
47. I accept that there is a significant benefit of the appeal site in providing for inert waste capacity relatively close to planned and permitted new development proposals. The use of this material in the restoration scheme, aligns with the ethos of the proximity principle and, in my view, would constitute sustainable development in this regard.
48. Overall, I have no contrary compelling evidence to suggest that there would be no lack of availability of inert fill. The proposed development would make a useful contribution to the management of exaction waste arising from construction

¹¹ PoE Liam Toland – paragraphs 5.52 – 5.53

projects in the locality. I consider that there are no compelling reasons to suggest that the proposed principles of phased working and restoration would not be achieved.

Conclusion on need

49. The extraction of sand and gravel from the site would make a much needed contribution to the supply of sand and gravel in the County. It would provide a sustainable source of sand and gravel to the urban areas where most of the future planned development is likely to occur.
50. I have no substantive and compelling evidence to suggest that there would be a shortage of infill material that would compromise the delivery of the principles of the phased working and restoration or that there would be a delay in the achievement of the proposed restoration scheme.
51. In conclusion, I am satisfied that there is a demonstrable need for the proposed development to contribute to the future supply of sand and gravel in this part of Lancashire. I have attached significant weight to the identified need for the proposed development in the determination of this appeal.

Highway safety and the free flow of traffic

Highways background

52. The Appeal proposal includes the construction of a new access road into the quarry site off Lancaster Road (B5270), located approximately 250m east of the junction with the A588. Lancaster Road is single carriageway which varies in width from around 5m to 6m and is subject to a 30mph speed limit. The proposed access has been designed to ensure that all HGV movements associated with the development would turn right into the site and left out. There are no footways along this part of Lancaster Road with the carriageway bound by a narrow verge and hedgerow. The closest section of footway is located approximately 300m to the west of the proposed site access.
53. The proposal would be expected to generate an average of 74 two-way HGV movements per day (37 in and 37 out) over the mineral exportation period. It would also generate a small number of staff trips by car associated with the range of 5 to 11 employees who would be on site per day. As the Appellant is intending to promote sustainable travel means for employees working on the site it is not possible to quantify with any degree of certainty the number of cars likely to be accessing and egressing the site but given that operatives of plant and machinery associated with an extraction site are usually transient workers it is reasonable to assume that there would be a number of cars using the site per day in addition to any maintenance/delivery vehicles.
54. The Highways SoCG identifies that HGV movements would be routed to and from the B5270 Lancaster Road/A588 junction. Movements would then be split at the junction and the Highways SoCG suggests that it is a reasonable assumption that HGV traffic associated with the development would be distributed 50% east of the site along Head Dyke Lane (A588) and 50% south along Burned House Lane (A588). It also sets out that general delay on the highway network as a consequence of the proposed development is not a concern to the Council in its capacity as highway authority.

55. From my observations at my site visits, and from the Council's evidence¹², I have no compelling reasons to doubt the Council's view that Lancaster Road is frequently used by equestrian users and organised cycling groups, as well as by individual cyclists.
56. The Council contend that safe and suitable access to the site is not agreed. There is a potential for vehicle conflict with resulting highway safety concerns; the local highway network is not suitable to safely serve the proposed development; and, the proposed measures to mitigate identified highway risks to an acceptable degree are not adequate.
57. Lancaster Road also provides pedestrian access to the nearest bus stops located on Head Dyke Lane, approximately 300m east of the site access outside Ranch House, and on Sandy Lane approximately 560m west of the site access outside Willow House. Both stops operate on a "hail and ride" basis and are served by commercial services to Lancaster and Knott End-on-Sea via services 88 and 89, as well as several school services (528, 541, 567, 901, 902, 903, 904 and 905). Lancaster Road additionally provides access to a Public Footpath located approximately 165m east of the proposed site access at Pointer Farm and to Bourbles Lane.
58. The Council has identified the equestrian holdings located in the vicinity of Lancaster Road including those at Pointer Stables (located opposite the proposed site access), Hillfield House (located approximately 100m to the east of the proposed site access), Pointer Farm (located approximately 160 m to the east proposed site access), and Pointer Cottage (located approximately 220m to the east proposed site access)¹³. It is clear from the evidence of the interested parties and the Council's evidence that Lancaster Road is frequently used by equestrian users, particularly to access the local bridleway network.

Access junction

59. The site would be accessed via a new priority-controlled junction on the B5270 Lancaster Road, with the junction incorporating a traffic-island arrangement separating the 'in' and 'out' movements, ensuring that HGVs enter and exit the site from the east, directing all HGV traffic to and from the A588.
60. The Council considers that visibility splays in both directions of 2.4m (x-distance) x 52m (y-distance) are required to ensure that drivers have a safe stopping distance. The required visibility splays are based on the recorded 85th percentile speeds as set out in the agreed traffic survey dated 6 - 12th October 2023¹⁴ and an allowance for wet weather conditions. The Council calculated the necessary visibility splays using the advice provided in paragraph 10.1.5 of Manual for Streets 2¹⁵. The traffic survey found that the recorded 85th percentile dry speeds along Lancaster Road were 37mph in both directions. To allow for wet weather conditions, the Council has used the guidance provided in paragraph 3.1.1 within the Design Manual for Roads and Bridges CA 185¹⁶ which suggests that the 85th percentile speeds should be deducted by 2.5 mph. This means that the wet weather 85th percentile speeds will be 34.5mph. The Council's evidence provides

¹² PoE Ryan Derbyshire – Appendix 8

¹³ PoE Ryan Derbyshire – Appendix 10

¹⁴ Highways SoCG

¹⁵ CD11.01

¹⁶ CD11.02

the calculation methodology to demonstrate how the suggested visibility splays of 2.4m x 52m have been determined¹⁷.

61. The Council contends that using a setback distance of 2.4m, as recommended in Manual for Streets, minimum visibility splays to the west of the access cannot be achieved to allow vehicles to emerge safely due to the presence of hedgerows. The visibility splays that are necessary run over third-party land occupied by the hedgerows and are therefore outside the control of the Appellant and the Highway Authority. Consequently, there is no mechanism to prevent obstructions exceeding 1m in height within the required visibility envelope. Any change to the height of the hedge lies outside the Appellant's control, meaning that the visibility splays required to achieve a safe site access cannot be delivered with certainty.
62. The resultant safety issues of the visibility splay not being achieved are identified as vehicles at the access not being able to view approaching vehicles and other road users including pedestrians, cyclists and equestrians with the risk of exiting the site into moving traffic. In addition, the Council expresses concerns that vehicles at the access would not be able to judge safe gaps within live traffic due to potential obstructions, leading for a greater risk of shunt or side impact collisions occurring; and that vehicles may need to creep into the running lane to obtain a view of oncoming vehicles and road users. This would obstruct through traffic and potentially increase the risk of collisions.
63. The access would be used by all vehicle types including cars when operatives are entering and exiting the site. The Council therefore considers that the vehicular visibility splays should be setback a minimum of 2.4m. Applying a setback distance of 2.4m would result in a residual concern that operatives using smaller vehicles will lack the adequate vehicular visibility to the east of the access to emerge safely. This is because the access is likely to achieve visibility splays of approximately 2.4m x 30m in this direction, which is a shortfall of 28m given the 85th percentile speeds.
64. The Appellant contends that the normal visibility splay requirement for new junctions onto a 30mph road is 2.4m x 43m. It is further suggested that prior to the determination of the planning application the Council had agreed a reduced x-distance of 1.2m to reflect the fact that drivers of HGVs sit much further forward in the cab than car drivers and that other non-HGV use of the junction will be very low. The Appellant is of the view that 1.2m x 43m visibility splays would be suitable for an access used predominantly by HGVs onto a 30mph road.
65. Notwithstanding the above, the Appellant considers that the Council's required visibility splays are achievable within land within the Appellant's control and adopted highway land, subject to cutting back of some vegetation within the highway boundary¹⁸. Subject to these measures 2.4m x 58m visibility splay in both directions is achievable from the access, drawn to the edge of the carriageway.
66. During the Inquiry a number of drawings were submitted by the Appellant¹⁹ to demonstrate how visibility splays of 2.4m x 49.5m and 1.2 x 43m could be achieved with minimal impact on hedges that are not in the control of the

¹⁷ PoE Ryan Derbyshire – Appendix 13

¹⁸ AppendixJRB7

¹⁹ ID34

Appellant. In addition, the plans included stopping sight distances east and west of the proposed access. Furthermore, the Appellant's highways evidence also suggests that a speed-indicator signage on the eastbound approach to the junction could be funded to help enforce the 30mph speed limit on Lancaster Road.

67. It is clear that the attainment of the visibility splays suggested by both main parties would require the management of varying stretches of hedgerow, particularly to the west of the access. There was considerable debate in the Inquiry regarding the ownership of the hedge and this whether there was certainty that the hedge could be maintained at height of 1m.
68. The Council considers that the extent of highway immediately to the west of the proposed site access extends to the root stock of the hedge. My attention was drawn to case law regarding this matter²⁰. It is contended that firstly a determination must be reached as to whether or not the hedge was grown by reference to the highway. This would usually arise by an act of the landowner to separate his land from the highway and keep his stock from straying onto the highway, but it could arise from actions of a Highway Authority itself in the case of highways which were created under statutory authority or through the acquisition of land for that purpose.
69. It is the Council's view that the hedge was grown by reference to the highway. This inference is drawn from the Council having no record of cutting or maintaining the hedges along Lancaster Road, and that the space between the hedgerows on either side would historically have provided the width needed for carts and carriages to pass with there being no available highway space to create a footway, for example. This section of highway predates 1786, when the first highways plan showing this area was produced. This evidence gives rise to the "hedge to hedge" presumption, with the highway being taken to extend to the carriageway side of the rootstock of the boundary hedge. As such, it is contended that the hedges to the east and west of the proposed access do not form part of the highway and are not highway assets but private assets. I observed at my site visit that considerable parts of the hedge on the highways side along Lancaster Road are managed close to the root stock.
70. The Appellant has made reference to an extract from the Council's internal mapping software, Mapzone, issued in 2020 showing the indicative highway extents along Lancaster Road. This is purported to suggest that the hedges form part of the adopted highway. However, the information is accompanied by a disclaimer which makes it clear that the extract is indicative only and not definitive evidence of the extent of the adopted highway.
71. It is clear that the highway authority firmly consider that the hedgerows along the northern section of Lancaster Road in the vicinity of the proposed access do not form part of the adopted highway. Although the Appellant disputes this view, I have no compelling contrary evidence to unambiguously demonstrate that the hedges are part of the highway as opposed to private assets. In these circumstances, the extent to which the hedge may be considered part of the adopted highway can only be resolved by further evidence and potential legal proceedings which are outside the scope of this appeal. In the absence of any compelling evidence to the contrary, I have determined this appeal on the basis of

²⁰ Hale v Norfolk CC CA (2001) Ch

the view of the statutory highway authority that the hedges do not form part of the adopted highway.

72. I have no compelling reason to doubt the Council's determination of the required visibility splay which is clearly based on the recognised guidance provided in Manual for Streets 2 and the Design Manual for Roads and Bridges CA 185. I have also taken into account the narrow nature of this part of Lancaster Road, as is discussed in more detail below, the fact that the highway has no pedestrian facilities, and the fact that the site will be used by vehicles other than HGVs. In my view, these characteristics and the relevant technical guidance documents lead me to conclude that the required visibility splays of 2.4m x 52m proposed by the Council are necessary in the interests of the safety of all users of the highway.
73. I have taken into account the various plans showing visibility splays of 2.4m x 58m, 2.4m x 43m, 1.2 x 43m, 2.4 x 43m and 2.4m x 49.5m provided by the Appellant. Notwithstanding my view that the Council's calculated splay should be used, all of the preceding options impinge to some extent on hedgerows that are not in the control of the Appellant with the 1.2m x 43m having the least degree of effect.
74. I have also taken into account the Appellant's view that an x-distance of 1.2m is sufficient for an access predominantly proposed to be used by HGV's, supported by the guidance provided in paragraph 10.5.5 and 10.5.9 of Manual for Streets 2, particularly stating that "*a reduction in visibility below recommended levels will not necessarily lead to a significant problem*". However, in my view, this does not provide a compelling justification to depart from the clear and evidenced based calculation of the required visibility splays suggested by the highway authority.
75. Evidence was presented to the Inquiry of the land registry title of the ownership of the land to the east of the access, including the hedgerow adjoining the highway²¹. The owner of this land is an objector to the proposed development and is not inclined to sell the land or any rights over it.
76. Without a suitable legal agreement with the relevant landowners or by purchasing appropriate land there is no mechanism to fully prevent any obstructions higher than 1m, impacting visibility splays, particularly to the west. Such obstructions could occur due to natural hedge growth. I have no evidence of any agreement with relevant landowners to ensure the land occupied by a hedge where the visibility splay passes over would be kept free of obstruction. Without such an agreement it would not be possible to secure the required visibility splays that I consider are necessary. This would mean that vehicles exiting the site would have substandard visibility which could lead to accidents occurring on this road to the detriment of highway safety. As such, the proposed development cannot provide a safe access to and from the site for all highway users.
77. I have considered the Appellant's view that a Grampian condition could be used to require works on land, in the form of hedgerow maintenance, that is not controlled by the Appellant. However, the PPG states that this should not be used where there are no prospects at all of the action being performed. Taking into consideration the comments received by the third-party owner of part of the land fronting Lancaster Road, the lack of any evidence whatsoever of any agreement with relevant third party owners, and the views of the highway authority regarding the extent of the adopted highway, I consider that, on the basis of the evidence

²¹ ID40 – ID42

before me, there are no prospects at all that the requirements of a Grampian condition could be delivered. As such, a Grampian condition would not be appropriate in this instance.

78. I have also taken into account the Appellant's suggestion of the provision of vehicle speed-indicator. I do not consider that the signage suggestion has any material bearing on the calculation of the visibility splay proposed by the Council which is based on the "as is" road characteristics uninfluenced by a signage suggestion which may or may not have an effect on vehicle speed.
79. Taking all of the above factors into account, the appropriate visibility splays cannot be achieved. The consequence is that vehicles waiting to egress the site may not be able to acceptably view approaching vehicles and other road users with a risk of vehicles exiting the site doing so into moving traffic. In addition, safe gaps within live traffic may not be able to be safely judged and vehicles may have to creep into the highway to obtain a clear view of oncoming vehicles and other road users. Therefore, the proposed access arrangement would present an unacceptable highway safety risk.

Highway Safety on local road network

80. The Council has no capacity issues associated with the road corridor proposed to be used by HGV's accessing and egressing the site. However, there is concern regarding the suitability of the route to support the additional HGV movements. This is due to the highway not being of sufficient width to support the needs of two-way HGVs, on Lancaster Road and the A588. The Council considers that this has highway safety implications as this proposal would increase conflict and subsequently the number of occurrences that HGVs will be required to reverse on the live network to allow another HGV to pass. This increases the risk of HGVs having to reverse, potentially without suitable visibility, notwithstanding the consequences on the stopping needs of approaching vehicles or the safety implications on vulnerable road users including pedestrians, cyclists and equestrians. This is along a part of the local highway network which has no physical pedestrian segregation from the live carriageway.
81. In particular, the Council considers that the concerns in respect of highway safety of the surrounding road network relate to sections of Lancaster Road (including the Vine House bend), and two locations along the A588 (including at the access serving Fold House Farm, approximately 3.3 km east of the A588/B5270 Lancaster Road junction), and at the A588 Burned House Lane/B5377 Park Lane/U22436 Cemetery Lane junction (located approximately 1.5 km south of the A588/B5270 Lancaster Road junction). It is contended that these locations cannot safely accommodate the HGV traffic that would be generated by the proposed development due to the lack of physical carriageway width to enable two-way vehicular movements to safely pass.
82. The Council's evidence considers the clearance required between the two passing HGV's vehicles, and the clearance between the HGV and the edge of the carriageway. This is based on a straight section of carriageway where vehicle wing mirrors do not overhang beyond the carriageway. This demonstrates that a minimum width of 6.2m is necessary to accommodate 2-way HGV movements²².

²² PoE Ryan Derbyshire – Appendix 16

83. A 6.2m carriageway width allows a 100mm clearance between passing HGVs (3.05m in width including door mirrors). However, 6.2m is a minimum width necessary on a straight road and does not include consideration of design speeds, traffic levels, traffic composition, highway curvature and gradients.
84. Lancaster Road at the Vine House Farm bend in the vicinity of the proposed access has carriageway widths varying between 5.4m and 7.2m²³. Existing carriageway widths along the A588 at the Fold House Farm bend vary between 5.1m and 5.8m on approach to the bend. At the A588 Burned House Lane/B5377 Park Lane/U22436 Cemetery Lane junction carriageway widths vary between 5.2m and 6.8m on the approach to the junction²⁴.
85. The Council contend that to prevent any conflict with hedgerows located in close proximity of the carriageway and street infrastructure, HGVs are likely to be off-set from the edge of the carriageway which would likely narrow the true running width of the highway in areas where there is a constrained width, particularly on Lancaster Road, which would likely cause lane discipline not to be maintained. This would cause vehicular conflicts should the carriageway be accommodating two-way HGV movements. This could result in one or both of the HGVs reversing on the live highway network to find a suitable passing place to wait while another HGV passes. Such reversing movements would be detrimental to the interests of highway safety. There does not appear to be any suitable locations on the local highway network where development related HGVs could wait for other vehicles to pass without creating a highway safety risk for other road users with a consequence that HGV drivers may resort to unsuitable locations to wait.
86. I observed at my site visit that HGVs meeting each other and traveling in opposite directions at the above locations encounter areas of the highway which necessitate sharp braking movements and require considerable driver skill and care to enable vehicles to pass at slow speed. I have no reason to doubt the Council's view that there may be occasions where the insufficient room to pass may lead to one or both vehicles reversing to create room. Reversing HGVs would have limited rear vision and such reversing may occur at locations frequented by pedestrians, cyclists and equestrians. In such scenario there is also limited verge provision for pedestrians to seek refuge whilst vehicles are passing or reversing.
87. These issues are also present at the Fold House Farm bend in Pilling where there is evidence of damage to properties and street furniture, and the Burned House Lane junction with Park Lane and Cemetery Road which has a severe 90-degree bend with poor intervisibility between road users on the A588. This is a location where large vehicle movements necessitate encroaching into the opposing carriageway. Therefore, the existing highway safety issues at this location may be exacerbated by the increase in HGVs generated by the appeal scheme resulting in an increased potential for large vehicles to meet each other at the bend.
88. At the A588 Burned House Lane/Park Lane/Cemetery Lane junction, there have been four personal injury collisions recorded in the last five years. Two out of the four collisions involved HGVs with one of the two involving an HGV and a pedestrian.

²³ PoE Ryan Derbyshire – Appendix 6

²⁴ PoE Ryan Derbyshire – Appendix 12

89. The recent road safety record (2000-2024) for Lancaster Road shows that there has only been one personal injury accident in the last five years. This occurred in 2023 to the south of Vine House and involved two vehicles – a single decker bus and a car. There have been no recordable accidents in the last five years at the Fold House Farm bend.
90. Traffic survey data recorded in 2023 and measured directly adjacent to the proposed site access on Lancaster Road suggests that the average weekday traffic flows recorded during the busiest weekday hour was 08:00-09:00 during which there were 302 vehicle movements and the average number of hourly movements throughout the core 12-hour daytime period (07:00-19:00) was 231, which averages at around 4 vehicle movements per minute.
91. The survey data shows that there were 16 HGV movements along Lancaster Road during the course of an average weekday, with 8 of these in the westbound direction and 8 in the eastbound direction. Lancaster Road is used by public buses and school buses. There are two public bus services that route along Lancaster Road and eight school bus services.
92. The Appellant's evidence identifies potential mitigation works including the potential widening of carriageway widening along parts of Lancaster Road by approximately 0.3m on both sides involving the removal of parts of the verge and provision of new signage. At the A588 Fold House Farm Bend and the A588/Cemetery Lane/Park Lane Junction new signage is also proposed.
93. The Council considers that insufficient evidence has been provided to demonstrate the delivery of the proposed widening scheme works particularly as street furniture and infrastructure may provide constraints to the deliverability of the scheme. Removal of parts of the existing relatively narrow verge would likely reduce the available extent of the refuge area to the detriment of pedestrian and equestrian safety. Moreover, I have no clear evidence of an implementation mechanism to secure such widening proposed by the Appellant. There is some ambiguity whether the proposed widening scheme forms part of the mitigation strategy.
94. I recognise that the provision of signage could be made the subject of a planning condition. However, there is no clear evidence to demonstrate that proposed signage could be accommodated within the extent of the adopted highway without the need to occupy third party land. The Council highlight the fact that such signage must comply with the relevant guidance, including requirement that signs do not encroach within 0.5m of the carriageway edge and are located within the highway boundary unless supported by a legal agreement. However, I consider that the proposed signage would not mitigate the underlying constraints but would merely highlight them.
95. Both main parties have provided detailed evidence regarding these suggested mitigation measures. Although I have been provided with a suggested planning condition relating to off-site highway works, there remains some degree of ambiguity regarding which aspects of these mitigation works are firmly proposed. The Appellant's highways witness is quite clear in that he does not consider that widening works are necessary²⁵ and suggests that signage would be necessary "should the Inspector deem it essential"²⁶. As such, there is some degree of

²⁵ PoE Jim Budd – paragraph 4.54

²⁶ PoE Jim Budd – paragraph 4.60

uncertainty on behalf of the Appellant's highway witness regarding the need for mitigation measures.

96. Mitigation measures are also proposed at the A588/Lancaster Road junction which comprises a remodelling of the junction. I have no evidence to suggest that the Council is otherwise content with this proposed mitigation which is included in an agreed suggested planning condition.
97. I also have taken into account the proposed Traffic Management Scheme provided in the UU which could enable the phasing of outbound HGV movements exiting the site to minimise conflict with other incoming HGVs and other HGV traffic. This also provides for restrictions on HGV movements during the morning and afternoon school opening and closing times.
98. The Council's evidence sets out that the A588 in particular already exhibits multiple, well-documented deficiencies. The key issues include insufficient forward visibility, inadequate carriageway width, verge overrun, loss of carriageway edge support, repeated vehicle strikes on boundary walls and traffic signs, and locations where HGVs are unable to maintain lane discipline. My site visit observations lead me to conclude that these issues are not hypothetical as they are occurring under existing traffic conditions. I accept that the proposed Traffic Management Scheme provided in the UU may mitigate some degree of conflict between HGVs arising from the proposed development. However, it cannot acceptably mitigate the risk of HGVs associated with the proposed development encountering other HGVs travelling along the local highway network.
99. The Appellant accepts that there will be a notable percentage increase in HGV usage on the local highway network as a consequence of the appeal scheme, although I accept that such usage would be low in absolute terms. Whilst there is no survey data of existing pedestrian activity on Lancaster Road, or indeed other areas of the local highway network, I do not consider that it can be concluded that the road is rarely used by pedestrians. In addition, there is no compelling data regarding the frequency and level of use of the local highway network by cyclists and equestrian users. Notwithstanding the lack of data regarding other road users, it is clear that Lancaster Road and other parts of the local network are used by such users and that there will be a notable increase in HGV traffic associated with the proposed development.
100. It is clear that the local highway network proposed to be used by HGVs arising from the proposed development has width and alignment constraints that do make it difficult for two-way HGV movements to pass. Whilst some mitigation, predominantly in the form of signage is proposed there is no clear evidence that this could be installed within the highway boundary without the need to utilise third party land for which I have also no evidence of any agreements to enable such land to be used. Furthermore, as set out above, there appears to be some degree of conflict between the proposed mitigation works considered by the Council at the planning application stage and the evidence presented in this appeal where the Appellant's highway witness does not appear to consider that the extent of the initial proposed mitigation is wholly necessary.
101. Overall, the proposed development would result in the potential for reversing movements to occur on the live carriageway in areas of constrained road width or the potential for sharp braking. This has highway safety implications not only for

other vehicles but also for the most vulnerable road users including pedestrians, cyclists and equestrians who are known to travel in the area and have limited verge protection. This situation potentially increases the likelihood of collisions and accidents to the detriment of highway safety and can only be considered as resulting in a severe impact from a safety perspective to the local highway network.

Highway safety conclusion

102. Policy TR6(4) of the Framework sets out that development proposals should be refused if they would have an unacceptable impact on highway safety. This National Decision-Making Policy is unambiguous.
103. I have considered the extent to which Policy DM2 of the Local Plan Part 1 and Policy CDMP 6 of the Wyre Local Plan remain consistent with the Framework. These policies set out, amongst other things, that minerals development should demonstrate that harmful environmental impacts can be eliminated or reduced to acceptable levels and that road safety and the safe, efficient and convenient movement of all highway users is not prejudiced and that safe and adequate vehicular access to and from a proposal site would be provided. These policies remain consistent with the provisions of Policy TR6(4) of the Framework and therefore should be afforded full weight.
104. I have found above that the proposed access arrangements would present an unacceptable highway safety risk as a consequence of the required visibility splays not being attained. In addition, there is the potential that the proposed development would exacerbate existing highway safety issues as a consequence of an increased number of HGVs using the local highway network that has width constraints. Proposed mitigation measures would not satisfactorily address these underlying constraints but would merely highlight them.
105. For the above reasons, the proposed development would present an unacceptable highway safety risk. Consequently, it would be contrary to the provisions of Policy TR6(4) of the Framework, Policy DM2 of the Local Plan Part 1 and Policy CDMP6 of the Wyre Local Plan.

Living conditions

Amenity Dust

106. The planning application was supported by a Dust and Air Quality²⁷ chapter of the ES and an Air Quality Assessment Report²⁸. This was supplemented by an "Updated Air Quality Assessment"²⁹ (Updated AQA). The assessment considered potential dust sources associated with the proposals and best practice measures were recommended in order to minimise any such disturbance at sensitive receptors. It was concluded that any dust occurrence event would be limited and of short duration and minimised by the implementation of the dust control measures. It also considered potential impacts due to PM₁₀ (particles less than 10 micrometres in diameter) and PM_{2.5} (particles less than 2.5 micrometres in diameter) dust particle sizes and concluded that air quality objectives (AQOs) would not be exceeded.

²⁷ CD1.08

²⁸ CD1.22

²⁹ CD3.06

107. It was considered unlikely that cumulative impacts would arise and the proposed operations were deemed to likely have a negligible effect on nearby sensitive receptors. The assessment included proposed in-design mitigation measures along with a summary of management and control measures that could be implemented specifically in relation to fugitive dust.
108. The above information was reviewed and supplemented by the evidence of the Appellant's dust and air quality witness. The assessment considered the guidance provided in the Institute of Air Quality Management (IAQM) 'Guidance on the Assessment of Mineral Dust Impacts for Planning'³⁰. It followed the recommended qualitative approach in considering the potential for any such dust to impact existing nearby properties and land uses through assessment of the distance and orientation to receptors, prevailing weather conditions, topography and screening. The IAQM Guidance advises that for a dust event to occur there must also be a failure of dust control measures.
109. Particles greater than 30µm (micrometres) make up the greatest proportion of dust emitted from mineral processing and largely deposit within 100 m of sources. Particles between 10 and 30µm are likely to travel from 250m to 400m, while sub 10µm particles, which make up a small proportion of dust emitted from most mineral processing operations, may travel up to 1 km from sources.
110. The IAQM guidance is clear that adverse dust impacts from sand and gravel sites are unlikely beyond 250m as measured from the nearest dust generating activities. Accordingly, the guidance advises that where receptors are not located within 250m of a sand and gravel site, it can normally be assumed that a detailed dis-amenity dust assessment would not be required.
111. The Updated AQA sets out the distances from the nearest receptors to the closest working area. However, I accept the Council's view that these distances should more realistically be shown to the property boundary rather than the building façade. The appeal proposals would place six of the receptor properties identified being classed as "close", i.e. within 100m of the closest working area.
112. The Appellant's evidence considers the likely dis-amenity dust impact at a number of sensitive receptors including Whinmoor Fold, Woodlands, Red Lea, Bourbles Farm, Ourhome, Mytax/New England Cottage, which are identified as being close. Other properties including, amongst others and Greenacres, The Beeches and Old Nickson's Cottage are also considered which are situated in excess of 100m from the closest working area. Dis-amenity dust is generally accepted to be greater in size than 10 microns and can cause dust soiling.
113. The evidence provided by the Appellant in the Inquiry includes an outline of measures that would form the basis of a Dust Management Plan (DMP) to mitigate the effect of dust on sensitive receptors. In my experience the submission of, and adherence to, a DMP is a usual requirement for mineral development and is predominantly secured by means of a planning condition. It also recognises that the greatest risk of any dust deposition at the properties nearest the extraction boundary would be during the initial soil stripping and other near-surface activities, including restoration works.

³⁰ CD12.11

114. Although the Council expresses some doubt that the DMP would necessarily control dust impacts to acceptable levels, including those arising from the use of internal haul roads, I have no compelling evidence to suggest that the draft measures contained therein would be insufficient to control dust emissions. Moreover, the submission of a DMP would be the subject of a planning condition, were I minded to allow this appeal, which would provide an opportunity for the Council to undertake a degree of scrutiny of the measures contained therein. Indeed, the Council's dust witness did recognise that the proposed mitigation would likely require enhancement.
115. Subject to the measures in the suggested DMP, as could be supplemented by the imposition of a suitable planning condition, the Appellant's evidence suggests that there would be slight adverse dust impacts during soil stripping and soil bund construction and removal at Bourbles Farm, Ourhome, Red Lea, Woodlands, Old Nicholsons Cottage and Mytax, the latter property is also predicted to receive negligible to slight adverse dust impacts during some extraction and processing operations. In respect of other properties in the vicinity of the site, the dust impacts were identified as being negligible.
116. I recognise that initial soil stripping, bund formation and removal, and soil replacement operations are usually short-lived activities of around 4 - 6 weeks duration per phase of the proposed development. Whilst weather conditions such as high winds and prolonged dry conditions could exacerbate the potential for dust impact, this can be addressed by the implementation of the DMP secured by a planning condition. The proposed mitigation measures are consistent with the IAQM guidance which recognises that dust mitigation is a dynamic process involving the review of the mitigation applicable to site conditions.
117. In addition, the importation of the inert fill material for restoration would be controlled under an Environmental Permit to be issued by the Environment Agency under the requirements of the Environmental Permitting (England and Wales) Regulations 2016. The Permit would require the management and operation of the permitted operations and directly associated activities using Best Available Techniques (BAT) to prevent, or where that is not practicable, reduce emissions. The Permit would likely include several conditions and would be expected to include standard boundary conditions in relation to dust and other aerial emissions.
118. There is no qualitative and quantitative guidance or any UK statutory standards that can clearly define the amount of dust by which amenity impacts can be readily assessed. However, I have no reasons to doubt the findings of the Appellant's dust witness that the worst-case scenario of operations on the site would result in slight adverse dust impact at the properties identified above.
119. I recognise that the categorisation by the Appellant of "slight adverse" dust impact is a subjective view for which there is no guidance available to make an informed judgement of the disamenity effect of this view. The Council considers that the magnitude of dust soiling effects at some receptor locations are underestimated by the Appellant. However, in my view, the Appellant's dust witness is well experienced to enable a comparative judgement to be made of the magnitude of dust impact in terms of its amenity effects. Whilst I recognise that those properties identified as being sited "close" to the site operations are more likely to be affected by dust deposition this does not suggest that such dust impact cannot be managed

to remain within acceptable levels as a consequence of the active employment of a robust DMP.

120. In my view, the amenity effects of dust in this case would not be sufficient to warrant the dismissal of this appeal and the resulting significance of disamenity effects from fugitive dust emissions would not be significant.

Air Quality

121. Fugitive dust (particulate matter) that could be generated by the proposed operations will include a proportion of 'fine particulate matter', also referred to as 'suspended particulate matter' (as PM₁₀ and PM_{2.5}). The Updated AQA accordingly also included a PM₁₀ and PM_{2.5} Assessment.
122. I accept that the main potential effect from mineral sites is disamenity dust due to deposition of large (>30 µm) and intermediate (10-30 µm) sized dust particles which are not respirable³¹. The sand and gravel material itself is much larger than PM₁₀ or PM_{2.5} (sand being described as having a grain size of 62-200 µm and gravel >200µm) and none of the proposed on-site activities would not involve any abrasive processes that would break the sand into smaller particles, particularly PM_{2.5}.
123. The Updated AQA made reference to the Air Quality Annual Status Report (ASR) published in 2021 by Wyre Borough Council. This details the results of ambient air quality monitoring undertaken by the Council up to the end of 2020 and at the time was the most up to date publicly available ASR. Wyre Borough Council has since provided an updated ASR (June 2025)³², which details the ambient air quality monitoring undertaken by the Council up to the end of 2024.
124. The 2021 ASR did not identify any areas of concern in relation to PM₁₀ or PM_{2.5} and consequently the Council did not undertake any monitoring for PM₁₀ or PM_{2.5} within its area. The 2025 ASR identified that this remains the situation with no areas of concern identified with regards PM₁₀ or PM_{2.5}.
125. The PM₁₀ and PM_{2.5} concentrations provided in the Updated AQA were therefore based on predicted background concentrations provided by Defra. This data is published by Defra in the form of predicted background concentration maps for 1km x 1km grid squares across the UK.
126. This latest predicted data is based on 2021 ambient monitoring and meteorological data. The maximum average background PM₁₀ and PM_{2.5} concentrations for the grid squares in which the site and nearest receptors are located are predicted to be substantially below the relevant objectives. These are predicted to fall slightly over time. Predicted background concentrations of PM_{2.5} are also well below the interim (non-legal) target for 2028 of 12 µg/m³, new interim (non-legal) target for 2030 of 10 µg/m³ and future legal target for 2040 of 10 µg/m³.
127. The Rule 6 Party provided evidence of an Air Quality Mesh Pod Particulate Study. This reports the results of a particulate matter monitoring exercise over a 3-week period in September-October 2023. I accept the Appellant's view that a Mesh Pod is recognised as providing 'indicative' result. The corresponding report does not provide any specific details or photographs of the monitor location, and no

³¹ Page 17 IAQM guidance on mineral dust

³² CD12.20

indication that the location met recommended stringent criteria for the siting of such monitors. Results are only provided for PM_{2.5} and not PM₁₀. Furthermore, only the raw hourly mean results are presented with no statistical analysis, calculation of 24-hour means and overall means. Therefore, I accept that the data has only limited utility.

128. The Rule 6 Party report states that the recorded results show a baseline level of PM_{2.5} of 6.48 µg/m³ at the site which is higher than that reported by the Appellant of 5.68 µg/m³. However, I accept the Appellant's view that these figures are not directly comparable, not least due the very different averaging periods referred to, and the Mesh Pod forming no more than an 'indicative' analyser.
129. The IAQM Guidance on mineral dust advises that where the long-term background PM₁₀ concentration is less than 17 µg/m³ there is little risk that additional contributions from a mineral site would lead to an exceedance of the annual mean air quality objective. The guidance advises that if this is the case then no further consideration is typically required. The Defra data predicts annual mean background concentrations of 8.47-9.61 µg/m³ in the locality of the Site. These are well below the recommended screening value of 17 µg/m³. On this basis, I accept that no further consideration of potential PM₁₀ impacts from the proposed development would be required.
130. With regard to PM_{2.5} emissions, any PM₁₀ generated by the proposed activities would also include a proportion of PM_{2.5} as a sub-fraction. The IAQM Guidance advises that for quarries most of any suspended dust generated will be in the coarse sub-fraction (PM_{2.5-10}), rather than in the fine (PM_{2.5}) fraction. The Updated AQA included further assessment of PM_{2.5}. This assumed an additional load of 0.5 µg/m³ PM_{2.5} attributable (as an annual mean) to the proposed operations to the existing background level.
131. As set out above, current predicted background PM_{2.5} concentrations in the area are well below all these future targets already at 4.77-5.39 µg/m³, 48-54% of the more stringent target of 10 µg/m³. Any additional contribution of the quarrying operations to background concentrations total annual mean PM_{2.5} concentrations would still remain well below these targets.
132. The suggested proposed dust mitigation measures to manage fugitive dust emissions would also serve to reduce potential PM₁₀ and PM_{2.5} emissions. Taking into account the submitted evidence, I consider that contributions of PM₁₀ and PM_{2.5} from any fugitive dust from the proposed development to local air quality at relevant receptors would not result in significant adverse effects.

Vehicle Emissions

133. The Updated AQA also considered the HGV movements to and from the proposed development which would result in NO_x / NO₂ and PM₁₀ emissions and hence potential adverse impacts on local air quality. The appeal site does not lie within an Air Quality Management Area (AQMA). The nearest AQMA is located approximately 8km to the southwest of the site and within the centre of Poulton-le-Fylde.

134. IAQM guidance on air quality and planning³³ provides screening criteria for additional traffic movements to be introduced as part of a development above which an air quality assessment is advised. The evidence suggests that the proposed development would result in Annual Average Daily Traffic (AADT) of 50 2-way movements. The screening criteria for HGVs are +100 AADT where distant from an AQMA and +25 AADT where within or close to an AQMA. As set out above, the appeal site and local road network are relatively distant from any AQMAs or identified areas of potential air quality concern.
135. At 50 HGV AADT, the 2-way on-road HGV movements associated with the proposed development would be well below the screening criteria of +100 HGV AADT. HGV movements would be further reduced during the periods of the development when only export or import occur. The Dust SoCG identified that the main parties agree that potential air quality impacts from traffic emissions are not likely to be significant.
136. Taking the above factors into account, I therefore consider that the contribution of the proposed quarry related HGV exhaust emissions to the local air quality would not be significant.

Noise

137. The planning application was accompanied by a Noise Assessment contained within Appendix 9 of the ES³⁴. Following a request by the Council, pursuant to Regulation 25 of the Environmental Impact Assessment Regulations, a further "Updated Noise Assessment"³⁵ was provided, dated 19 August 2024, which updated and superseded the Noise Assessment contained within Appendix 9 of the ES.
138. The minerals sections of the Planning Practice Guidance (PPG) advise that noise limits should be established through a planning condition, at the noise-sensitive property that does not exceed the background noise level (LA90,1h) by more than 10dB(A) during normal working hours (0700-1900). Where it will be difficult not to exceed the background level by more than 10dB(A) without imposing unreasonable burdens on the mineral operator, the limit set should be as near that level as practicable. In any event, the total noise from the operations should not exceed 55dB(A) LAeq, 1h (free field)³⁶. The PPG recognises that temporary operations such as topsoil and overburden stripping, bund formation and the final restoration processes are often noisier than extraction operations, but these are of relatively short duration. Consequently, it advises that increased temporary daytime noise limits of up to 70dB(A) LAeq 1h (free field) for periods of up to 8 weeks in a year at specified noise-sensitive properties should be considered to facilitate essential site preparation and restoration work and construction of baffle mounds³⁷.
139. The Updated Noise Assessment included measurements of existing ambient noise levels in the proximity of properties in the vicinity of the appeal site, a summary of background noise levels at those properties and an assessment of predicted worst case site noise levels as a consequence of short-term activities, such as soil

³³ CD12.12, Table 6.2

³⁴ CD1.21

³⁵ CD3.05

³⁶ Paragraph: 021 Reference ID: 27-021-20140306

³⁷ Paragraph: 022 Reference ID: 27-022-20140306

stripping and bund construction and normal mineral extraction operations. The calculation of potential noise levels predicted at nearby noise sensitive properties was based on the methodology outlined within Annex F of BS 5228-1:2009+A1:2014 '*Code of practice for noise and vibration control on construction and open sites. Part 1: Noise*'. This guidance details methods to estimate noise from 'open sites' which can include quarries and waste disposal sites.

140. All noise level predictions were calculated with the combinations of plant working at the closest point to the assessment location. The Updated Noise Assessment therefore considers predictions are worst-case scenarios which may be of relatively short duration. However, they indicate the potential highest LAeq,1h noise level to which a particular property or group of properties may be exposed during the working of the site. This worst-case situation may occur intermittently over the lifetime of the site, but the longer-term noise levels perceived outside of the site boundary would normally be significantly less.
141. The Updated Noise Assessment identifies that potential noise levels from short-term activities are expected to remain within the temporary daytime limit of 70dB recommended within the PPG. With regard to normal operations, the assessment identified that potential noise levels from normal site operations could exceed the background level by more than 10dB at properties comprising Woodlands, Red Lea and Bourbles Farm. However, the proposed screening bunds reduce potential noise levels to within the 55dB limit at all assessment locations and near to the LA90 + 10 dB(A) criteria as practicable in accordance with the PPG.
142. It further identified that, in reality, site activities likely to generate noise levels that are in excess of 10 dB above the background noise levels will be infrequent and short lived. Furthermore, as extraction operations will occur on a campaign basis, meaning that there will be significant periods during the life of the scheme where only very minimal operations are occurring in the wider extraction areas, the longer-term noise levels are anticipated to be significantly lower.
143. With reference to the noise exposure hierarchy, potential impacts are considered to be at or below the 'Lowest Observed Adverse Effect Level' (LOAEL) at the majority of noise-sensitive premises with the potential for effects marginally above the LOAEL but significantly below the 'Significant Observed Adverse Effect Level' (SOAEL) at Woodlands, Red Lea and Bourbles Farm.
144. The Updated Noise Assessment also provided recommended noise limits for each noise sensitive property in the vicinity of the appeal site together with a number of noise control measures to be employed during operations at the site. It concluded that with the implementation of a range of best-practice control measures during the working of the quarry site, the overall noise impacts would unlikely be significant.
145. Prior to the opening of the Inquiry, the Appellant produced a "Technical Note"³⁸ regarding noise matters that considered the locations where the calculated site noise level would exceed a site noise limit based on the advice in the PPG i.e. not exceeding background noise levels plus 10 dB(A) up to a maximum of 55 dB LAeq, 1 hour. This identified that increasing some bund heights would result in the calculated site noise levels being no more than 10 dB(A) above the representative

³⁸ CD12.23

background noise levels at all of the assessment locations. The following bund height increases were identified:

- Phase 1 – Woodlands – increase of 0.1 to a height of 10.1 metres AOD;
- Phase 1 – Red Lea - increase of even 0.2 metres to a height of 9.7 metres AOD; and
- Phase 4 – Bourbles Farm – increase of 1.5 metres to a height of 11 metres AOD.

146. The SoCG Noise identifies that the Council agrees that the adopted methodology for the assessment of noise impacts as set out in the Updated Noise Assessment is suitable. However, the Council does not agree with the Appellant findings regarding the predicted noise levels at some locations, principally among these being the “Woodlands” during normal operations and particularly during the short-term works.

147. The Appellant recognises that Phase 1 of the site is very close to Woodlands and Red Lea. However, this phase of the site contains the thickest mineral reserves up to 6 metres in depth and therefore the applicant wishes to maximise mineral recovery from this area. In my experience, soil screening bunds would normally be established on the site perimeter prior to any mineral working taking place to provide protection to nearby properties. However, adopting this practice within Phase 1 would sterilise the mineral below the bund footprint. Therefore, it is proposed to work the mineral in a 12m wide strip to the depth of the water table before backfilling the excavation to original ground levels.

148. In order to provide acoustic attenuation prior to the commencement of soil stripping operations in the vicinity of the above properties an acoustic fence, approximately 3.75m high, at a height of 10.1m AOD is proposed to be constructed along the site boundary in the vicinity of these properties. The evidence of the Appellant suggests that the prior construction of the fence would allow for the extraction of mineral to take place whilst complying with the suggested site noise limits for routine operations of no more than 10 dB(A) above the background levels. The fencing would remain in place during bund construction operations.

149. The Council remained unconvinced that the proposed acoustic fence would achieve the required mitigation and that the 50 dB limit would be exceeded³⁹. This matter was the subject of considerable discussion in the Inquiry.

150. I recognise that the use of plant with low sound output levels, the reach of the excavator and the direction of mineral extraction can materially impact on the calculation of the anticipated noise levels in the vicinity of the Woodlands. I also recognise that the imposition of the suggested planning condition (proposed condition No.27) that stipulates noise levels at a number of properties in the vicinity of the site and the requirement for the submission of a Noise Management Plan (No. 28)⁴⁰ would ensure the control of noise in the vicinity of noise sensitive properties.

³⁹ ID13

⁴⁰ ID47

151. I accept that the calculated noise levels are presented as a worst-case scenario and are unlikely to occur in practice. The predicted noise levels would all be within the guidelines set out in the PPG (Minerals) and would not exceed background noise levels by more than 10dB(A) during the site's working hours. Furthermore, the site is being worked in phases and noise will drop away with distance from sensitive locations.
152. There is no doubt that Woodlands is a high sensitivity noise receptor. With the low background noise levels in the locality, I accept that the proposed development would be the principal noise source that is capable of affecting residential amenity. However, subject to the imposition of the suggested noise conditions, I am satisfied that the submitted evidence demonstrates that the site can be worked while keeping noise emissions to within environmentally acceptable limits as set out in the PPG (Minerals). Consequently, I do not consider that noise emitted from the site would give rise to a significant adverse effect. In my view, the evidence demonstrates that the proposed noise mitigation measures would enable a good standard of residential amenity to be achieved.

Conclusion on the effect of the proposed development on living conditions and Air Quality

153. Overall, I am satisfied that, subject to appropriate planning conditions setting out mitigation and compliance measures, the proposed development would not, by reason of noise, dust or poor air quality, have a significant adverse effect on the amenity of the area or the living conditions of those living nearby or using recreational features.
154. With regard to these impacts, the Council has identified conflict with Policy DM2 of the Local Plan Part 1 and Policy CDMP1 of the Wyre Local Plan. Taking into account the age of the policies contained within the Local Plan Part 1, I have considered the guidance provided in Policy M4(1)(b) and Policy P3 of the Framework.
155. Amongst other matters, Policy DM2 sets out that mineral developments will be supported where it can be demonstrated that the proposals will make a positive contribution to the residential amenity of those living nearby which will be achieved by the control of emissions from the proposal including dust and noise. In my view, Policy DM2 remains consistent with the overall objectives of Policy M4(1)(b) and Policy P3 of the Framework and therefore should be afforded full weight.
156. Taking into account my findings above, I find no conflict with the relevant provisions of Policy DM2 and no conflict with Policy CDMP1 of the Wyre Local Plan.
157. In coming to the above conclusion, I have also taken into account the Inspector's Report for sand and gravel extraction at Ware Park, Wadesmill Road, Hertford (APP/M1900/W/17/3178839)⁴¹. In particular, my attention was drawn to paragraphs 392 to 394 of the Report. In that case my colleague Inspector found that noise levels likely to be generated would be close to the acceptable limits set out in the Guidance. The Inspector was "*not convinced, given the separation distances between the proposed excavation and nearby dwellings that there would be sufficient headroom here, between likely noise levels from the operation and*

⁴¹ CD8.02

acceptable noise limits, to be confident that the proposed development would not, at times, result in an adverse noise impact that would harm the living conditions of nearby occupiers and the amenity of the area.”

158. It is rarely the case that appeal decisions on other sites will bring to light parallel situations and material considerations which are so similar as to provide justification for a decision one way or another. My conclusion in respect of the effect of the proposed development on the living conditions of nearby residents is based squarely on the evidence before me.
159. In the appeal case before me I have found that noise and dust effects would not exceed relevant guidance levels and therefore I have no substantive and compelling grounds to suggest that the living conditions of nearby residents would be harmed to an extent that would warrant the dismissal of this appeal on those grounds. For that reason, I do not consider that the appeal decision brought to my attention has a determinative influence on my consideration of the appeal case.

Other Matters

Effect on the local economy

160. Interested parties and the Rule 6 Party consider that the presence of an open quarry in the area would have a potentially significant impact on the viability of nearby local businesses. The perception of visual harm, traffic impact and dust associated with the proximity of the proposed development to existing local businesses, in particular those associated with leisure and equestrian activities, is considered to cause harm to their longer-term viability. In addition, it is considered that a quarry will inevitably make the area less attractive to visit and thereby have a detrimental effect on the tourist economy, particularly those using nearby camping and caravanning facilities.
161. There was no conclusive evidence provided in the Inquiry to make any reasonable judgement of the effect of the proposal on existing economic development in the local area. Whilst I accept that the proposed development would not provide many jobs, my attention was not drawn to any policy in the Development Plan that may set out a minimum level of jobs to be created in a development proposal.
162. I recognise the concerns that the proposal may be perceived as a detractor to some businesses. However, I am not convinced that these concerns would be likely to translate into material land use considerations if the appeal were to be allowed and the appeal scheme was regulated in accordance with the suggested planning conditions and an Environmental Permit issued by the Environment Agency in respect of the infilling operations.
163. It seems to me that the local concerns derive from a perception of harm. There is no evidence before me to conclusively demonstrate that quarrying activity has materially adversely affected economic development elsewhere in the country.
164. Although the proposal would generate a small degree of local employment, there is no evidence to suggest that this would be a significant benefit to the local economy due to the specialist nature of some of the quarrying plant. In my view such local benefits would be modest, but nonetheless beneficial. Given the nature and scale of the proposed operation, I consider that the likely effect on the economy would be a benefit of minor significance.

165. The perception of harm to the local economy can be a material planning consideration. However, I am satisfied that, in the absence of any substantive evidence to the contrary, there would be no material harm to economic development interests in the locality. In these circumstances, I consider that only limited weight is attributable to the perception of harm to the local economy. The scheme would not give rise to a significant conflict between land uses in the area.

Effects of dust on human health

166. The effects of dust on health is not an issue for the Council but is a major concern for local residents and the Rule 6 Party and was reflected in many written and oral submissions.

167. A proportion of PM₁₀ emitted from the proposed development could comprise respirable crystalline silica (RCS). Silica is a naturally occurring substance found in varying amounts in most rocks, sand and clay and the long-term inhalation of RCS may give rise to silicosis. There is understandably no evidence of what proportion of RCS may be emitted or how likely the extraction of the proposed minerals would generate RCS emissions as this cannot be determined with any degree of certainty. There is evidence that RCS risk is increased where minerals are crushed, whereas the appeal scheme would involve the processing of a damp raw material through a wet washing process to produce a finished material which is also inherently damp. This means that the potential for community exposure is low with minimal impact on air quality. However, RCS is a recognised hazard for personnel working at quarries.

168. The Health and Safety Executive (HSE) state that silicosis is a disease that has only been seen in workers from industries where there is a significant exposure to silica dust, such as in quarries and foundries, however, it should be noted that no cases of silicosis have been documented among members of the general public in Great Britain.

169. There is no UK established or recommended ambient air quality standard for RCS nor is there any recommended methodology for the assessment for potential RCS emissions to ambient air or potential off-site impacts. The AQA also considered the health effects of RCS and a Health Technical Note⁴² was produced by the Appellant. The Technical Note identified that the change in air quality would be negligible and that the proposed development would remain well within air quality objectives protective of health. It further identified that the appeal proposal would not present any measurable risk to local community health.

170. In addition, in response to concerns raised by the Rule 6 Party the Appellant provided a Human Health Technical Note⁴³ which provided detailed responses to specific questions raised by the Rule 6 Party. Although the responses were discussed in the Inquiry, no contrary technical evidence was provided.

171. In my view the implementation of dust suppression measures in accordance with a Dust Management Plan would all serve to minimise the risk of any RCS emissions from the site. There is no compelling evidence that clearly demonstrates that the proposed development would pose a potential significant risk to the local population due to RCS.

⁴² PoE Katrina Early Hawkins – Appendix KEH11

⁴³ ID36

172. I now turn to consider whether, in the absence of objective justification for the public health concerns raised with respect to air quality, land use consequences would flow from the perception of harm. It is clear from the submissions made that a significant number of existing residents in the area are concerned at the potential air quality impacts. Understandably, relatively few who cite this concern have engaged on an evidential basis. However, taking into account my findings above, I consider that only limited weight is attributable to the perception of harm to public health.

Ecology and Effect on Protected Sites

173. As noted above, the appeal site is within 1.5km of Morecambe Bay and Duddon Estuaries SPA, Morecambe Bay SAC, Morecambe Bay Ramsar and Lune Estuary SSSI. It is also within 2.3km of Wyre Estuary SSSI. The Council's reasons for the refusal of planning permission did not refer to any detrimental ecological impact nor any adverse impact on the above sites.

174. The ES accompanying the planning application included an ecological assessment. Prior to the determination of the planning application and to address the concerns of Natural England, a second season of overwintering bird surveys was undertaken during the 2023/24 period to better characterise the numbers of birds and species using the site and adjacent areas, zones of influence, the types of habitats found within the site and the appropriateness of mitigation measures. Further information was also provided to address impacts on other ecological interests raised by the Council's Ecologist.

175. Despite the submission of this information, at the time the planning application was determined Natural England advised that there was currently not enough information provided in the application to determine whether the likelihood of significant effects can be ruled out. In particular, Natural England advised that a Habitats Regulations Assessment (HRA) should be submitted to assess each potential impact pathway from the proposal for each nearby designated site supported by sufficient evidence to justify its conclusions.

176. In addition, the Council's Ecologist also advised that the impacts on these protected sites cannot be concluded and recommended that a shadow Habitats Regulation Assessment (sHRA) is undertaken by the applicant. Without this assessment the Council's Ecologist considered that was not possible to conclude that the impacts on the European Sites are acceptable and therefore there would be a conflict with Policy CDMP 4 of the Wyre Local Plan.

177. During the Inquiry, interested parties also raised concerns that the second season of overwintering bird surveys undertaken during the 2023/24 may have underscored the actual number of birds utilising the appeal site and its immediate surroundings. Consequently, it was contended that the survey cannot be relied upon.

178. For whatever reasons the above matters were not concluded prior to the determination of the planning application nor prior to the opening of the Inquiry. The Council's Officer Report identified that the "*...production of a shadow Habitats Risk Assessment is a major piece of work, the need for which has to be viewed in the context of the other issues that are raised by this application*". No conclusions were made in the Officer Report regarding this matter.

179. Prior to the opening of Inquiry the Appellant produced a sHRA which was also forwarded to Natural England on 10 April 2026. This concluded that:

- The development would not materially affect the population, distribution or viability of SPA qualifying species;
- The application site does not constitute functionally critical land required to maintain SPA populations;
- Any displacement of birds would be localised and accommodated within the wider landscape without ecological consequence at the SPA scale;
- There would be no effect on the structure, function or supporting processes of the Morecambe Bay SAC;
- The coherence of the ecological network supporting the European sites would be maintained.
- There is no hydrological or water quality pathway by which the proposed development could affect the qualifying habitats of the site. Surface water is contained, attenuated, and controlled within the site, with discharge restricted to greenfield rates and subject to settlement and dilution processes.

180. The sHRA recommended that the requirements of Regulation 63 of the Habitats Regulations can be lawfully satisfied and that the proposed development may be consented without the need to proceed to further stages of the Habitats Regulations Assessment process (i.e. consideration of alternatives or Imperative Reasons of Overriding Public Interest).

181. Despite attempts by the Appellant to secure a response from Natural England on the findings of the sHRA during the course of the oral sessions of the Inquiry no such response was forthcoming. I also consulted Natural England following the closure of the oral aspects of the Inquiry. The response dated 23 June 2026, included a copy of the response which was sent to the Council dated 27 May 2025 and the covering e-mail advised that the advice contained therein remains unchanged. I have no further information regarding the extent to which Natural England considered the content of the sHRA prior to making this response.

182. In my role as 'competent authority' I have taken into account the provisions of Regulation 63(1) of the Conservation of Habitats and Species Regulations 2017. This indicates the requirement for an Appropriate Assessment is only necessary where the competent authority is minded to give consent for the proposal. Given my conclusions on the main issue above relating to the highway safety considerations and the planning balance below, it is therefore not necessary for me to consider this matter in any further detail.

Other matters

183. In addition to the impacts considered above, I have also taken into account other concerns raised by interested parties regarding, amongst other matters, including the potential effect of the proposed development on flood risk, the loss of recreational amenity for users of the nearby Public Rights of Way Network and a potential loss of outlook for the occupiers of some properties. Although the above matters have been carefully noted, they do not alter the main issues which have been identified as the basis for the determination of this appeal, particularly in

circumstances where the Council has not objected to the appeal scheme for these other reasons.

Unilateral Undertaking

184. The Appellants have provided a completed planning obligation in the form of a Unilateral Undertaking (UU) pursuant to section 106 of the Town and Country Planning Act 1990 which was signed on 12 May 2026. This includes a number of obligations relating to the submission of, and adherence to, a Traffic Management Scheme for approval by the Council to come into effect if the appeal is allowed and planning permission is granted.
185. I have taken into account the content and implications of the UU in my consideration of the highway implications of the proposed development above. I have also considered the obligations contained within the UU in light of the statutory tests contained in Regulation 122 of The Community Infrastructure Levy (CIL) Regulations 2010.
186. I am satisfied that the provisions set out in the UU are necessary to make the development acceptable in planning terms, are directly related to the development and fairly and reasonably related in scale to the development. The obligations meet the tests as set out within paragraph 58 of the Framework and CIL Regulation 122. I am also satisfied with the form, drafting and content of the UU.
187. As set out above in my consideration of the highway implications of the proposal, I therefore have attached weight to the provisions contained within the UU.

Planning Balance

188. Policy M3(1) of the Framework sets out that in assessing proposals for minerals development, substantial weight should be given to the benefits of mineral extraction and processing, including to the economy and that particular importance should be given to the maintenance of minimum reserves of aggregates. I have found that there is a proven and demonstrable need for the proposed development to contribute to the future supply of sand and gravel in this part of Lancashire. The proposal would make an important contribution to the landbank for sand and gravel in the County which faces a critical landbank and supply shortage. I have therefore attached significant weight to these benefits.
189. Subject to appropriate planning conditions, the proposed development would not, by reason of noise, dust or poor air quality, have a significant and demonstrable adverse effect on the amenity of the area or the living conditions and health of those living nearby.
190. However, I have found that the proposed development would present an unacceptable highway safety risk. As such it would be contrary to the provisions of Policy DM2 of the Local Plan Part 1 and Policy CDMP6 of the Wyre Local Plan. It would also be contrary to the provisions of National Decision-Making Policy TR6(4) of the Framework which clearly and unambiguously states that development proposals should be refused if they would have an unacceptable impact on highway safety.
191. Notwithstanding the weight that I have attached to the benefits of the proposed development, I consider that these would be significantly and demonstrably outweighed by the unacceptable highway safety risk that would be caused. The

proposed development would be contrary to the provisions of the above Development Plan policies and Policy TR(6) of the Framework. Consequently, the evidence in this case leads me to the conclusion that the appeal should be dismissed.

Conclusion

192. For the above reasons, taking into account the Development Plan and the Framework as a whole, based on the evidence before me and all other matters raised, I conclude that the appeal should be dismissed.

Stephen Normington

INSPECTOR

ANNEX A – APPEARANCES

FOR THE APPELLANT

John Barrett, Counsel

He called

Simon Rees BSc, MSc, C.Geol, FGS, MIQ

Director, Greenfield
Environmental Ltd

Dr Robert Storey Beng, PhD, MIOA

Senior Consultant, WBM
Acoustic Consultants

Katrina Early Hawkins BSc (Hons), MSc,
CENV, MIES, MIAQM, MISEP

Chairman, Smith Grant LLP

Jim Budd MSc, FCIHT

Director, Singleton Clamp &
Partners

Liam Toland BA (Hons), MSc, MRTPI

Director, Kedd Ltd

FOR LANCASHIRE COUNTY COUNCIL

Constanze Bell, Counsel

She called

David Gray BSc (Hons), MIOA

Principal Acoustician,
AtkinsRéalis

Matthew Edwards BSc (Hons), MSc
MIEnvSc, MIAQM, CSci

Associate in Air Quality and
Emissions Team, AtkinsRéalis

Ryan Derbyshire BSc (Hons), MSc, MCIHT

Team Leader Highways
Development Control,
Lancashire County Council

Richard Sharples BSc, MA, PGDip

Principal Planning Officer,
Lancashire County Council

INTERESTED PARTIES

Councillor Matthew Salter

Lancashire County Council

Paul Ellis

Fylde Bird Club

Ashely Anderton

Chair Knott End and Preesall
Flood Action

Rob Billingham

Local resident

Carmel Harding

Lancaster Road Quarry
Boundary Residents Association

Paul O'Connor

Local resident

Peter Swarbrick	Chair Stalmine-with-Staynall Residents Association
Ian Dale	Local resident
David Irvine	Chair Willowgrove Park Residents Association
Councillor Collette Rushworth	Wyre Borough Council
Victoria Dewhirst (read by Councillor Rushworth)	Local resident
Harry Hutcheon	Local resident
Pieter Burke	Local resident
Neil Cookson	Chair Pilling Parish Council
Carol Howden (read by Councillor Rimmer)	Local resident
Councillor Claire Rimmer	Wyre Borough Council
Aaron Englander	Local resident
Mary Wood	Local resident
Bob Rushforth	Local resident
Mr Shields (read by Colin Murray)	Local resident
Cat Smith MP	Member of Parliament for Lancaster and Wyre
Marc Glass (read by Councillor Rushworth)	Local resident

ANNEX B

CORE DOCUMENTS

Core documents and associated Inquiry documents can be found on the Inquiry Website which is accessible at:

<https://www.lancashire.gov.uk/environment-and-planning/planning/bourbles-lane-preesall/>

ANNEX C**DOCUMENTS SUBMITTED DURING THE INQUIRY (ID)**

Inquiry Document (ID)	Description of Document
ID1	Rule 6 Party Opening Statement
ID2	Appellant Opening Statement
ID3	Lancashire County Council Opening Statement
ID4	Speaking Note of Paul Ellis
ID5	Speaking Note of Rob Billingham
ID6	Speaking Note of Paul O'Connor
ID7	Speaking Note of Ian Dale
ID8	Speaking Note of Councillor Matthew Salter
ID9	Speaking Note and ownership evidence of Carmel Harding
ID10	Revised Plans List submitted by the Appellant
ID11	Electronic copy of revised plans
ID12	Speaking Note of Peter Swarbrick
ID13	Technical Noise Note submitted by Mr Gray
ID14	Legal Opinion regarding location of Average Speed Cameras
ID15	Technical Note relating to noise relating to Phase 1 Internal works submitted by Dr Storey
ID16	Speaking Note of David Irvine
ID17	Revised List of Plans V1 15.04.26
ID18	Revised Plan PA24-9 V3b – Conceptual Restoration
ID19	Plan showing revised site visit walkover points V3 submitted by Appellant
ID20	Plan showing off-site site visit location points submitted by Rule 6 Party
ID21	Speaking Note of Ashley Anderton

ID22	Revised Agreed Description of Proposed Development
ID23	Speaking Note of Councillor Collette Rushforth
ID24	Speaking Note of Victoria Dewhurst
ID25	Speaking Note of Mary Wood
ID26	Speaking Note of Bob Rushforth
ID27	Speaking Note of John Shields
ID28	Speaking Note of Carol Howden
ID29	Speaking Note of Councillor Claire Rimmer
ID30	Speaking Note of Harry Hutcheon
ID31	Speaking Note of Pieter Burks
ID32	Speaking Note of Cat Smith MP
ID33	Questions for written response from Br Buroni submitted by Rule 6 Party
ID34	Technical Note TN01 submitted by Appellant to demonstrate site access visibility splays
ID35	Speaking Note of Marc Glass
ID36	Health Technical Note provided by Dr Buroni in response to questions raised by Rule 6 Party
ID37	Email dated 21.4.26 from Xanthe Barker Wild
ID38	Appeal Decision APP/R0660/W/24/3355974
ID39	Objection to Revised Transport Statement dated December 2024 by Lancaster Road Quarry Boundary Residents Association
ID40	Official Copy Title Plan and Register Entry LA754983
ID41	Official Copy Title Plan and Register Entry LA905060
ID42	Official Copy Title Plan and Register Entry LAN266168
ID43	Official Copy Title Plan and Register Entry LA582412
ID44	Closing Statement by Lancashire County Council
ID45	Closing Statement by Rule 6 Party
ID46	Closing Statement by Appellant

ANNEX D

LIST OF DOCUMENTS REQUESTED BY THE INSPECTOR AND SUBMITTED AFTER THE CLOSE OF THE ORAL SESSIONS OF THE INQUIRY

Inquiry Document (ID)	Description of Document
ID47	Revised Draft Planning Conditions
ID48	Completed Unilateral Undertaking (dated 12 May 2026) which provides for a Traffic Management Scheme